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Secure Distribution Venture Pvt. Ltd.

What Is Interim Funding Solutions ?

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A Master Class White Paper & Comprehensive Training Manual on Structured Bridge Loans, Gap Financing, Takeout Risk Appraisal, and IBC DIP Super-Priority Debt in the Indian Credit Ecosystem.

Table of Contents

Module Name	Page No
Module 1: Theoretical Foundations and Product Philosophy of Interim Funding	3
Module 2: Structural Taxonomy and Comparative Analysis (The Credit Matrix)	4
Module 3: The End-to-End Operational Lifecycle of Interim Funding Solutions	5
Module 4: Transactional Credit Underwriting and Takeout Risk Analysis	6
Module 5: Legal Security Architecture, Assignment of Claims, and CERSAI	7
Module 6: Sectoral Sizing, Suitable Industries, and Ecosystem Market Alignment	8
Module 7: Commercial Pricing Mechanics, Benchmark Rates, and Interest Tax Shields	9
Module 8: Regulatory Compliance, RBI Master Circulars, and Bankruptcy DIP Context	10
Module 9: Comprehensive Real-World Case Study (Mumbai Logistics Parks Ltd.)	11
Module 10: 10-Question Professional Certification Examination and Detailed Rationales	13

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Module 1: Theoretical Foundations and Product Philosophy of Interim Funding

Interim Funding Solutions (IFS) represent a highly specialized, transaction-oriented branch of structured corporate finance in India. Broadly defined, an Interim Funding Solution is a short-tenure, secured debt facility (typically spanning 3 to 12 months) designed to bridge an entity's critical cash flow requirements until a primary, long-term capital infusion—known in financial markets as the 'takeout event'—materializes. Unlike traditional open-ended working capital lines, which are underwritten based on historical inventory turns and general balance sheet solvency, interim funding is structured around a specific, contracted, and highly probable future liquidity event.

The product philosophy of interim funding is anchored in the concept of **liquidity velocity**. In corporate finance, transition states—such as the period between procuring land and securing a construction term loan, or the gap between signing a definitive private equity investment agreement and the actual inward remittance of Foreign Direct Investment (FDI)—are inherently fraught with frictional risk. Without a dedicated financial bridge, projects of immense economic value can stall, leading to compounding contract penalties, supplier defaults, and severe erosion of enterprise value. Interim funding serves as a surgical, time-bound intervention that maintains operational momentum during these transitions.

Underwriting an interim funding facility requires a fundamental shift from traditional balance sheet assessment to **Takeout Risk Analysis**. In standard corporate lending, a banker looks to the borrower's debt-service coverage ratio (DSCR) derived from ongoing operating EBITDA. In interim funding, the primary source of liquidation is not operating cash flow, but rather the takeout event itself. Therefore, the underwriting methodology focuses on the legal enforceability, credit rating of the takeout provider (e.g., a commercial bank with a sanctioned term loan or an institutional venture fund with a signed share subscription agreement), and the fulfillment probability of any pre-disbursement conditions. This is the 'takeout paradox': a borrower with a highly stressed standalone balance sheet may still be highly eligible for interim funding, provided the future takeout is securely committed and insulated from operational failure.

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Module 2: Structural Taxonomy and Comparative Analysis (The Interim Credit Matrix)

To master the design of interim credit products, trainees must understand where these structures sit within the broader credit matrix. Below is a structured comparative analysis mapping Interim Funding Solutions (IFS) against traditional and modern alternative instruments in the Indian banking system:

Product	Primary Intent	Repayment Structure	Tenure Range	Collateral / Security	CERSAI / ROC Filing
Interim Funding (IFS)	Bridge gaps to committed takeout	Bullet repayment from takeout proceeds	3 to 12 months	Exclusive charge on escrow + receivables	Mandatory within 10 days
Bridge Loans	Pre-equity/IPO cash runway	Bullet from equity/long-term debt	6 to 18 months	Pledge of promoter shares, negative lien	Mandatory within 30 days
Short-Term Loans	General working capital mismatches	Equal Monthly Installments (EMIs)	12 to 36 months	Secondary real estate or personal guarantee	Mandatory within 30 days
Cash Credit (CC)	Ongoing operating cycle funding	Revolving against drawing power	12 months (re-evaluated)	Hypothecation of stock and book debts	Mandatory within 30 days
WCDL	Carve-out for larger corporate credit	Bullet at tranche maturity	30 to 180 days	Shared pari-passu charge on current assets	Shared within Consortium

The table highlights that while standard products (such as Cash Credit and WCDL) are designed to support steady-state business processes, Interim Funding is a tactical transaction-backed instrument. Its security architecture is intensely focused on the ring-fencing of future takeout proceeds, rather than physical collateral cover.

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Module 3: The End-to-End Operational Lifecycle of Interim Funding Solutions

The execution of an Interim Funding transaction in India must follow a strict, multi-step operational protocol to protect the lender from diversion of capital and transaction failure. The lifecycle spans five distinct phases:

1. Phase 1: Gap Appraisal & Sizing: The lender identifies the precise funding gap in the corporate cycle. This involves analyzing the project's cash budget to size the bridge capital required. Crucially, the underwriter evaluates the 'Takeout Event'—inspecting the legally binding term loan sanction letter, the executed private equity share subscription agreement, or the institutional customer purchase order that will provide the liquidity to extinguish the interim debt.

2. Phase 2: Escrow Structuring & Tripartite Agreement: A dedicated Trust and Retention Account (TRA) or Joint Escrow Account is set up with a designated escrow bank. A legally binding tripartite agreement is executed among the Borrower, the Interim Lender, and the Takeout Provider (or the buyer of services/equity). The key covenant in this agreement is the 'Irrevocable Direct Payment Mandate,' which obligates the takeout provider to remit the future capital directly into the designated Escrow Account, bypassing the borrower's operating accounts.

3. Phase 3: Purpose-Linked Tranche Disbursement: To ensure absolute end-use control, funds are not disbursed as a lump-sum cash injection. Instead, they are drawn down in progressive tranches directly tied to specific operational milestones (such as land registration, custom clearance of raw machinery, or execution of structural engineering works). The bank's disbursement officer verifies these milestones through chartered engineer certificates, GST invoice filings on the government portal, and direct RTGS payments to raw material vendors.

4. Phase 4: Monitoring, Covenants & Risk Tracking: During the tenure of the interim facility, the lender actively tracks risk indicators. This includes monitoring any administrative delays in regulatory approvals (e.g., NHAI clearances, land title mutations), checking for changes in the credit rating of the takeout provider, and ensuring that no secondary liens or encumbrances are placed on the assets. The borrower is required to submit weekly progress reports and bank statement reconciliations.

5. Phase 5: Takeout Sweep & Debt Amortization: Upon the occurrence of the takeout event (such as the first disbursement of the primary term loan or the closing of the venture equity round), the takeout provider remits the capital directly into the Escrow Account. The escrow agent executes an automatic waterfall sweep: first, the outstanding principal and accrued interest of the interim facility are fully liquidated. Once the interim lender is completely repaid and a No-Objection Certificate (NOC) is issued, the remaining surplus is transferred back to the borrower's main operational account.

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Module 4: Transactional Credit Underwriting and Takeout Risk Analysis

Credit underwriting for Interim Funding Solutions is fundamentally different from standard asset-backed or balance-sheet lending. Traditional lending relies on the borrower's leverage ratios, debt-to-equity multiples, and current ratios. Interim underwriting, however, is a cash flow-driven methodology that focuses on transaction velocity and takeout certainty.

The primary underwriting pillars are:

• **Takeout Creditworthiness:** Because the future takeout provider is the ultimate source of repayment, the lender appraises the takeout provider's credit rating and capital adequacy. If the takeout is a bank term loan, the underwriting bank evaluates the issuing bank's Basel III Capital Adequacy Ratio (CAR > 12.0%) and asset quality. If the takeout is an equity round, the lender reviews the venture capital/private equity fund's regulatory approvals, dry powder, and binding investment covenants.

• **Condition Precedent (CP) Probability:** All takeout events are subject to conditions precedent—such as securing land title clearance, obtaining environment clearances, or achieving a specific revenue milestone. The interim underwriter must thoroughly evaluate the technical and administrative feasibility of these CPs. If the CPs are highly complex or administrative, the lender applies a 'safety margin' or requires a corporate guarantee from a financially sound parent company.

• **Scorecard Integrity:** While primary emphasis is on the takeout, the borrower's corporate discipline is still verified. Underwriters require the promoter's personal CIBIL score to be above 700 and look for a strong CIBIL MSME Rank (CMR 1 to CMR 4) to ensure the operating team has a history of honoring statutory and credit commitments.

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Module 5: Legal Security Architecture, Assignment of Claims, and CERSAI Covenants

A robust legal security structure is the cornerstone of interim funding risk mitigation. Since the borrower may not have substantial unencumbered fixed collateral, the lender must construct an airtight legal net over the transaction's cash flow assets:

• **Absolute Assignment of Actionable Claims:** Under Section 130 of the Transfer of Property Act, 1882, the borrower signs an irrevocable Deed of Assignment. This legally transfers the absolute right to receive the future takeout proceeds or transaction receivables from the borrower to the interim lender. Once the takeout provider receives notice of this assignment, they are legally bound to pay the interim lender, and any payment to the borrower directly fails to discharge their obligation.

• **The Tripartite Escrow and Non-Dispute Covenant:** The tripartite agreement features a critical legal clause: the 'Non-Dispute Covenant.' The takeout provider (or the buyer of goods) agrees that once the conforming milestone is met, they will remit the funds into the designated escrow account without any set-off, counterclaim, or commercial deduction, regardless of any separate disputes they may have with the borrower. This insulates the interim lender from operational disputes.

• **CERSAI and ROC Charge Registration:** To prevent double-financing or fraudulent multiple pledging of the same receivables, the interim lender must register a first exclusive charge on the designated escrow account, book debts, and project receivables with the Central Registry of Securitisation Asset Reconstruction and Security Interest of India (CERSAI) within the strict 10-day statutory window mandated under the 2021 Factoring Regulation Amendments. Additionally, Form CHG-1 must be filed on the Ministry of Corporate Affairs (MCA) portal within 30 days to secure ROC charge priority.

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Module 6: Sectoral Sizing, Suitable Industries, and Ecosystem Market Alignment

Interim Funding Solutions are highly aligned with capital-intensive, fast-moving, or high-growth sectors in India. The suitable business profiles include:

• **Infrastructure and Engineering SPVs:** Road-building (NHAI HAM projects), railway construction, and transmission line developers frequently use interim funding. They utilize these facilities to fund construction work between progressive project milestone payments or to bridge the time gap between a bank's term loan sanction and the actual administrative disbursement of tranches.

• **High-Growth Tech Startups:** Startups with strong institutional backings often secure interim funding (or venture debt) to extend their runway during the 3 to 6 months it takes to close a Series B or Series C equity round from global VC funds, preventing severe valuation down-rounds.

• **Agri-Commodity and Festive Trade:** MSMEs engaged in agricultural processing use seasonal interim funding to purchase bulk inventory during the harvest window (e.g., paddy or cotton harvest seasons), bridging the cash mismatch until the inventory is processed, packaged, and sold to institutional retail buyers.

To contextualize the scale of this credit demand: commercial lending data indicates that **Retail and Wholesale Traders represent the largest segment of working capital borrowers, making up 44% of total active commercial borrowers** in the ₹10 Lakh to ₹2 Crore exposure segment. This indicates an immense opportunity for digital supply chain financing. Digital solutions are rapidly scaling, as seen in SBI's e-DFS (Electronic Dealer Financing Scheme) reaching an outstanding of **₹49,261 Crores** and its e-VFS (Electronic Vendor Financing Scheme) standing at **₹28,092 Crores**. These platforms demonstrate how structured, digital data flow can substitute physical property collateral to unlock immediate liquidity.

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Module 7: Commercial Pricing Mechanics, Benchmark Rates, and Financial Models

Interim funding is priced based on the risk profile of both the borrower and the takeout event. The commercial pricing parameters are highly structured:

Interest Cost = (Disbursed Outstanding × Applicable Interest Rate × Days) / 365

Interest is calculated strictly on a **daily reducing balance basis**. This ensures that the borrower only pays for the exact capital utilized and the exact number of days the bridge remains outstanding. Key pricing parameters include:

• **Benchmark Benchmark Rates:** For MSMEs, rates are typically pegged to the bank's External Benchmark Linked Rate (EBLR), which tracks the RBI Repo Rate. For larger corporate entities, lenders utilize the Marginal Cost of Funds Based Lending Rate (MCLR) as the benchmark, adding a risk premium spread ranging from 1.50% to 4.50% p.a. depending on the rating of the takeout event.

• **Processing Fees and GST Covenants:** An upfront arrangement or processing fee ranging from 0.50% to 1.50% is charged at the time of sanction. Under the Indian tax framework, all upfront bank processing fees attract a mandatory 18% GST. Crucially, interest charges are completely exempt from GST, allowing treasury managers to minimize tax-related capital lockups. Any GST paid on processing fees is fully recoverable as an Input Tax Credit (ITC) if the corporate entity has a valid GSTIN registration.

• **Post-Tax Interest Tax Shield:** Under Section 36(1)(iii) of the Income Tax Act, 1961, any interest paid on capital borrowed for business purposes is a fully deductible business expense. This creates a valuable 'Interest Tax Shield.' The effective post-tax cost of borrowing can be modeled as:

Effective Post-Tax Rate = Pre-Tax Interest Rate × (1 - Corporate Tax Rate)

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Module 8: Regulatory Compliance, RBI Master Circulars, and Bankruptcy DIP Context

In India, interim funding is subject to strict regulatory checks by the Reserve Bank of India (RBI) and has a distinct legal status under insolvency law:

• **The Insolvency and Bankruptcy Code (IBC), 2016 Context:** Under Section 5(15) of the IBC, interim finance raised during the Corporate Insolvency Resolution Process (CIRP) is classified as 'super-priority debt.' If an enterprise is in insolvency, the Resolution Professional (RP) can raise interim finance to keep the company a going concern. This debt is paid out of the resolution proceeds with absolute super-priority over all other creditors, including secured financial creditors and statutory tax dues. This legal ring-fencing minimizes lender credit risk and attracts specialized distress debt funds.

• **RBI Restrictions on Bank Bridge Loans:** The RBI maintains strict statutory restrictions to prevent stock market speculation and credit diversion. Under RBI Master Circulars, commercial banks are prohibited from granting bridge loans against public issues of shares, debentures, or expected equity inflows from venture capital funds. Any bridge or interim finance must be strictly against confirmed, sanctioned bank term loans or institutional trade receivables. Additionally, there is a total RBI prohibition on Primary Urban Cooperative Banks (PCBs) granting any bridge loans or interim finance under any circumstances.

• **IRACP Asset Classification and Provisioning:** All interim facilities are governed by the RBI's Income Recognition, Asset Classification, and Provisioning (IRACP) guidelines. If interest or principal remains unpaid for more than 30 days, the account is classified as Special Mention Account 1 (SMA-1). If unpaid for more than 60 days, it becomes SMA-2. Upon crossing the 90-day threshold, the facility is classified as a Non-Performing Asset (NPA), requiring banks to make a mandatory 15% sub-standard asset provisioning. Lenders actively structure escrow auto-sweeps to prevent technical IRACP defaults.

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Module 9: Comprehensive Real-World Case Study (Mumbai Logistics Parks Ltd.)

To illustrate the immense value of structured Interim Funding Solutions in the Indian market, let us examine the case of **Mumbai Logistics & Warehousing Parks Pvt. Ltd. (MLWPL)**, an infrastructure developer. MLWPL has secured an approved ₹50 Crore long-term project term loan from a commercial bank to construct a state-of-the-art warehousing terminal. However, the bank term loan has a pre-disbursement condition precedent (CP) requiring the local government's land-title mutation certificate, a process that is administratively delayed by 180 days.

If MLWPL halts construction, it faces severe project-delay penalties from its anchor client (Amazon India) of ₹5,00,000 per month, alongside immediate price increases on structural steel from vendors. To avoid this, MLWPL structures a ₹10 Crore Interim Funding Solution (IFS) to bridge the 6-month delay. The comparison below models standard unsecured bridge financing against our structured, escrow-backed Interim Funding:

Financial Metric	Pathway A: Unsecured Bridge Loan	Pathway B: Escrow-Backed IFS
Sanctioned Principal Value	₹10,00,00,000 (₹10 Crores)	₹10,00,00,000 (₹10 Crores)
Nominal Annual Interest Rate	18.00% p.a.	11.00% p.a.
Upfront Processing Fee	1.50% (₹15,00,000)	0.50% (₹5,00,000)
180-Day Pre-Tax Interest Outlay	₹88,76,712.33	₹54,24,657.53
GST on Processing Fee (18%)	₹2,70,000.00 (Input Credit claimed)	₹90,000.00 (Input Credit claimed)

Let us analyze the post-tax cash flows of **Pathway B (Escrow-Backed IFS)**. MLWPL operates at a corporate tax rate of **25.17%**. Under Section 36(1)(iii) of the Income Tax Act, 1961, both the interest payment of ₹54,24,657.53 and the processing fee of ₹5,00,000 are fully tax-deductible expense items.

- **Interest Tax Shield = ₹54,24,657.53 × 25.17% =** ₹13,65,386.30
- **Processing Fee Tax Shield = ₹5,00,000.00 × 25.17% =** ₹1,25,850.00
- **Combined Tax Shield Savings = ₹13,65,386.30 + ₹12,58,850.00 =** ₹14,91,236.30

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• **Net Post-Tax Cost of Financing under Pathway B = (₹54,24,657.53 + ₹5,00,000.00) - ₹14,91,236.30 =** ₹44,33,421.23

By choosing Pathway B, MLWPL achieved direct interest and fee savings of over **₹44.5 Lakhs** compared to an unsecured bridge loan. More importantly, MLWPL avoided **₹30,00,000** in Amazon India delay penalties (₹5 Lakhs/month for 6 months) and maintained excellent relationship integrity with both its primary term loan bank and downstream construction vendors. This demonstrates how structured interim financing maximizes enterprise wealth while ensuring absolute risk insulation.

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Module 10: 10-Question Professional Certification Examination

This certification exam is designed to test a trainee's absolute mastery of Interim Funding structures, underwriting metrics, legal frameworks, and regulatory compliance guidelines in India. Complete all questions, then review the detailed rationales below:

Question 1: What is the primary repayment source of an Interim Funding Solution?

A) General operating cash flows of the corporate debtor
B) Personal assets of the promoters pledged as collateral
C) The committed future takeout event (e.g., term loan or equity round proceeds)
D) General working capital drawing power from stock audits

Correct Answer: C
Rationale: Unlike general Cash Credit lines that rely on operating cash flows, Interim Funding is structured strictly around a committed future takeout event. The takeout capital is swept directly into an escrow account to liquidate the debt.

Question 2: Under Section 130 of the Transfer of Property Act, 1882, how is the security of interim funding legally established?

A) Creation of a floating charge on inventory and stock in trade
B) Absolute assignment of actionable claims (receivables/takeout proceeds) via a Deed of Assignment
C) Registration of a dynamic equitable mortgage on corporate real estate
D) Personal guarantee of the independent directors

Correct Answer: B
Rationale: Section 130 governs the absolute transfer of actionable claims. By signing a Deed of Assignment, the borrower transfers the legal right to receive future takeout proceeds directly to the interim lender, binding the takeout provider to pay the lender directly.

Question 3: Under the 2021 Factoring Regulation Amendments, what is the statutory window for registering security charges with CERSAI?

A) 30 days from the date of charge creation
B) 10 days from the date of charge creation
C) 45 days from the date of first tranche disbursement
D) 15 days from the date of signing the loan agreement

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Correct Answer: B
Rationale: The 2021 Amendments to the Factoring Regulation Act shortened the statutory registration window with CERSAI to a strict 10-day period. This minimizes the window for fraudulent double-financing or overlapping claims.

Question 4: Which of the following entities is subject to a total RBI regulatory prohibition on granting bridge loans or interim finance under any circumstances?

A) Scheduled Commercial Banks (SCBs)
B) Non-Banking Financial Companies (NBFC-Factors)
C) Primary Urban Cooperative Banks (PCBs)
D) Category II Alternative Investment Funds (AIFs)

Correct Answer: C
Rationale: Under RBI Master Circulars, Primary (Urban) Cooperative Banks are totally prohibited from granting any form of bridge loan, interim finance, or temporary credit facility under any circumstances.

Question 5: How is interest charged on an Interim Funding facility usually structured?

A) Flat interest rate charged on the entire sanctioned limit
B) Dynamic compound interest calculated on monthly rests
C) Daily reducing balance interest on actual utilized outstandings
D) Bullet interest due strictly at the end of the corporate fiscal year

Correct Answer: C
Rationale: To provide maximum treasury efficiency, interest on structured interim funding is calculated on a daily reducing balance basis, ensuring the borrower only pays for the exact capital utilized and the exact number of days outstanding.

Question 6: What is the classification status under the RBI's IRACP guidelines if an interim facility's interest remains unpaid for 45 days?

A) Special Mention Account 0 (SMA-0)
B) Special Mention Account 1 (SMA-1)
C) Special Mention Account 2 (SMA-2)
D) Sub-Standard Non-Performing Asset (NPA)

Correct Answer: B
Rationale: Under RBI's IRACP classification, an account with principal or interest overdue

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between 31 and 60 days is classified as Special Mention Account 1 (SMA-1). If unpaid for more than 90 days, it is downgraded to a Non-Performing Asset.

Question 7: What is the legal status of 'interim finance' raised during the Corporate Insolvency Resolution Process (CIRP) under the IBC, 2016?

A) Classified as unsecured operational debt paid after secured financial creditors
B) Classified as super-priority debt, paid first out of the liquidation or resolution proceeds
C) Subject to clawback by statutory income tax authorities
D) Pledged as secondary collateral to the principal resolution applicant

Correct Answer: B
Rationale: Under Section 5(15) of the Insolvency and Bankruptcy Code (IBC), 2016, interim finance raised during CIRP holds absolute super-priority status. It is paid first from resolution or liquidation proceeds, before secured financial lenders and taxes.

Question 8: Which of the following is an example of an eligible takeout event for underwriting an Interim Funding Solution?

A) Speculative expectation of secondary stock market appreciation
B) An approved, sanctioned project term loan from a public sector bank
C) An uncommitted verbal offer from an offshore family office
D) Expected general seasonal sales revenue during the festive season

Correct Answer: B
Rationale: An eligible takeout event must be legally binding, committed, and underwritten. A sanctioned project term loan from an institutional lender (or signed private equity subscription) represents a valid, credible takeout.

Question 9: How is the upfront arrangement or processing fee for interim funding treated under the Indian GST framework?

A) Exempted from GST, but subject to a flat 12% stamp duty
B) Attracts a mandatory 18% GST, which is completely non-recoverable
C) Attracts a mandatory 18% GST, which can be claimed as an Input Tax Credit (ITC)
D) Subject to a dynamic 5% GST on daily reducing balance fees

Correct Answer: C
Rationale: All upfront bank arrangement or processing fees attract 18% GST in India. Entity

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developers with valid GSTIN registrations can fully claim this paid tax as an Input Tax Credit (ITC) to offset their output GST liability.

Question 10: What is the purpose of the 'Non-Dispute Covenant' in a tripartite interim funding escrow agreement?

A) To legally force the borrower and promoter to resolve disputes within 48 hours
B) To obligate the takeout provider to remit funds into escrow without set-off or counterclaim regardless of any disputes with the borrower
C) To prevent the interim lender from filing legal proceedings under the SARFAESI Act
D) To allow the escrow bank to charge a flat transaction handling commission

Correct Answer: B
Rationale: The Non-Dispute Covenant in the tripartite agreement obligates the takeout provider (or the buyer of goods) to remit the funds directly into escrow once the specific milestone is achieved, completely waiving any set-off, commercial deduction, or counterclaim rights.

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